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U.S. District Court - District of Colorado
District of Colorado (Denver)
CIVIL DOCKET FOR CASE #: 1:20-cv-01194-DDD-MDB

HamKim Inc. v. AmGUARD Insurance Company
Assigned to: Chief Judge Daniel D. Domenico
Referred to: Magistrate Judge Maritza Dominguez Braswell
Case in other court: Pueblo County District Court, 2020CV30183
Cause: 28:1332 Diversity-Breach of Contract

Date Filed: 04/29/2020
Date Terminated: 05/18/2023
Jury Demand: Both
Nature of Suit: 110 Insurance
Jurisdiction: Diversity

Plaintiff

HamKim Inc.
doing business as
Vista Inn

represented by **Michael Young Kim**
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ATTORNEY TO BE NOTICED

V.

Defendant

AmGUARD Insurance Company
also known as
Berkshire Hathaway Insurance Companies
also known as
Berkshire Hathaway Inc.

represented by **Robert B. Hinckley , Jr.**
Buchalter LLP
1099 18th Street
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TERMINATED: 07/13/2022
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Date Filed	#	Docket Text
04/29/2020	1	NOTICE OF REMOVAL by AmGUARD Insurance Company from Pueblo County District Court, Case Number 2020cv30183. (Filing fee \$ 400, Receipt Number 1082-7273214), filed by AmGUARD Insurance Company. (Attachments: # 1 Civil Cover Sheet, # 2 Exhibit A - State Court Complaint, # 3 Exhibit B - District Court Civil Case Cover Sheet - State, # 4 Exhibit C - District Court Civil Summons - State, # 5 Exhibit D - Register of Actions - State)(Hinckley, Robert) (Entered: 04/29/2020)
04/29/2020	2	CORPORATE DISCLOSURE STATEMENT. (Hinckley, Robert) (Entered: 04/29/2020)
04/29/2020	3	FIRST AND FINAL NOTICE TO ALL ATTORNEY(S) AND UNREPRESENTED PARTIES IN REMOVED, TRANSFERRED, OR OTHER CASES. To receive any

		further notice in a case removed or transferred to this court, or special matters including discovery disputes, bankruptcy appeals, or withdrawals of reference, Multi-district litigation (MDL), etc., all attorneys and unrepresented parties must enter an appearance under D.C.COLO.LAttyR 5(a). An attorney must be an active member of this court's bar and be in good standing in accordance with D.C.COLO.LAttyR 3. A waiver of the fee for bar admission may apply in limited situations. (Text Only Entry) (trvo,) (Entered: 04/29/2020)
04/29/2020	4	Case assigned to Magistrate Judge Kathleen M. Tafoya. Text Only Entry. (trvo,) (Entered: 04/29/2020)
04/29/2020	5	Original COMPLAINT and Jury Demand against AmGUARD Insurance Company, filed by HamKim Inc..(trvo,) (Entered: 04/29/2020)
04/29/2020	6	Magistrate Judge consent form issued pursuant to D.C.COLO.LCivR 40.1, direct assignment of civil actions to full time magistrate judges. (trvo,) (Entered: 04/29/2020)
04/30/2020	7	ORDER Setting Scheduling Conference for 6/10/2020 10:45 AM in Courtroom 101 (Colorado Springs) before Magistrate Judge Kathleen M. Tafoya. Consent Form due by 6/3/2020. By Magistrate Judge Kathleen M. Tafoya on 4/30/2020. (ksena) (Entered: 04/30/2020)
04/30/2020	8	NOTICE of Entry of Appearance by Laura J. Ellenberger on behalf of AmGUARD Insurance CompanyAttorney Laura J. Ellenberger added to party AmGUARD Insurance Company(pty:dft) (Ellenberger, Laura) (Entered: 04/30/2020)
05/06/2020	9	ANSWER to 5 Complaint by AmGUARD Insurance Company.(Hinckley, Robert) (Entered: 05/06/2020)
05/07/2020	10	ORDER: Due to the continuing complications caused by the spread of COVID-19 coronavirus, the Court has issued General Orders 2020-3, 2020-6, and 2020-8, which, among other things, reflect an effort by judicial officers to reschedule hearings or to convert hearings to telephonic appearances and to reschedule civil and criminal trials through July 6, 2020. Accordingly, the Scheduling Conference set for June 10, 2020, is vacated but will not be reset at this time. The parties are still required to file their proposed Scheduling Order and their Magistrate Judge consent form no later than June 3, 2020, in accordance with 7 Order. By Magistrate Judge Kathleen M. Tafoya on 5/7/2020. Text Only Entry (kmtlc1) (Entered: 05/07/2020)
05/12/2020	11	NOTICE of Entry of Appearance by Michael Young Kim on behalf of HamKim Inc.Attorney Michael Young Kim added to party HamKim Inc.(pty:pla) (Kim, Michael) (Entered: 05/12/2020)
05/12/2020	12	CORPORATE DISCLOSURE STATEMENT. (Kim, Michael) (Entered: 05/12/2020)
05/25/2020	13	CONSENT to Jurisdiction of Magistrate Judge by Defendant AmGUARD Insurance Company All parties do not consent.. (Hinckley, Robert) (Entered: 05/25/2020)
05/26/2020	14	CASE REASSIGNED pursuant to 13 Consent to Jurisdiction of Magistrate Judge. All parties do not consent. This case is randomly reassigned to Judge Daniel D. Domenico. All future pleadings should be designated as 20-cv-01194-DDD. (Text Only Entry) (nmarb,) (Entered: 05/26/2020)
05/26/2020	15	ORDER REFERRING CASE to Magistrate Judge Kathleen M. Tafoya. Pursuant to 28 U.S.C. § 636(b)(1)(A) and (B) and Fed. R. Civ. P. 72(a) and (b), this case is referred to the assigned United States Magistrate Judge to (1) convene a scheduling conference under Fed. R. Civ. P. 16(b) and enter a scheduling order meeting the requirements of Local Civ. R. 16.2, (2) conduct such status conferences and issue such orders necessary for compliance with the scheduling order, including amendments or modifications of the

		scheduling order upon a showing of good cause, (3) hear and determine pretrial matters, including discovery and other non-dispositive motions, (4) conduct hearings, including evidentiary hearings, and submit proposed findings of fact and recommendations for rulings on dispositive motions, and (5) pursuant to Local Civ. R. 16.6 and at the discretion of the Magistrate Judge, convene such early neutral evaluation and/or settlement conferences and direct related procedures as may facilitate resolution of this case without the necessity of a motion or prior authorization of the undersigned. SO ORDERED by Judge Daniel D. Domenico on 5/26/2020. Text Only Entry (dddlc2,) (Entered: 05/26/2020)
06/03/2020	16	Proposed Scheduling Order <i>also filed on behalf of Plaintiff</i> by Defendant AmGUARD Insurance Company. (Hinckley, Robert) (Entered: 06/03/2020)
06/05/2020	17	ORDER Regarding Entry of Scheduling Order. By Magistrate Judge Kathleen M. Tafoya on 6/5/2020. (ksena) (Entered: 06/05/2020)
06/05/2020	18	SCHEDULING ORDER: Discovery due by 1/31/2021. Dispositive Motions due by 3/1/2021. By Magistrate Judge Kathleen M. Tafoya on 6/5/2020. (ksena) (Entered: 06/05/2020)
06/29/2020	19	Unopposed MOTION for Leave to <i>File Plaintiff's First Amended Complaint</i> by Plaintiff HamKim Inc.. (Attachments: # 1 Exhibit Exhibit A-Plaintiff's First Amended Complaint (Redlined), # 2 Exhibit Exhibit B-Plaintiff's First Amended Complaint (Clean), # 3 Proposed Order (PDF Only) Proposed Order Granting Plaintiff's Unopposed Motion for Leave to File Plaintiff's First Amended Complaint)(Kim, Michael) (Entered: 06/29/2020)
07/01/2020	20	ORDER granting 19 Motion for Leave. Plaintiff moves to file an amended complaint. But Plaintiff represents that the Defendant consents to the amendment. Doc. 19 at 3. Even though no motion is required when a party who seeks to amend its complaint obtains the consent of the opposing party, see Fed. R. Civ. Proc. 15(a)(2), the court GRANTS the motion for good cause shown because it is unopposed. SO ORDERED by Judge Daniel D. Domenico on 7/1/2020. Text Only Entry (dddlc2,) (Entered: 07/01/2020)
07/02/2020	21	AMENDED COMPLAINT against AmGUARD Insurance Company, filed by HamKim Inc..(Kim, Michael) (Entered: 07/02/2020)
07/16/2020	22	<i>Defendant's</i> ANSWER to 21 Amended Complaint by AmGUARD Insurance Company. (Hinckley, Robert) (Entered: 07/16/2020)
11/11/2020	23	Unopposed MOTION for Extension of Time to <i>Designate Experts and Conduct Discovery</i> by Plaintiff HamKim Inc.. (Attachments: # 1 Affidavit Declaration of Michael Y. Kim)(Kim, Michael) (Entered: 11/11/2020)
11/12/2020	24	ORDER REFERRING MOTION: 23 Unopposed MOTION for Extension of Time to <i>Designate Experts and Conduct Discovery</i> filed by HamKim Inc. Motion referred to Magistrate Judge Kathleen M. Tafoya by Judge Daniel D. Domenico on 11/12/2020. Text Only Entry (dddlc2,) (Entered: 11/12/2020)
11/12/2020	25	MINUTE ORDER granting 23 Motion for Leave to Extend Deadlines to Designate Affirmative Relief Experts, Defensive Experts, Rebuttal Experts, and for Discovery Cut-Off. The deadline to designate affirmative relief experts is extended to December 4, 2020. The deadline to designate defensive experts is extended to January 8, 2021. The deadline to designate rebuttal experts is extended to January 29, 2021. Discovery cut-off is extended to February 21, 2021. By Magistrate Judge Kathleen M. Tafoya on 11/12/20. Text Only Entry(kmtlc2) (Entered: 11/12/2020)
12/04/2020	26	Expert Witness Designation by Plaintiff HamKim Inc.. (Kim, Michael) (Entered: 12/04/2020)

01/07/2021	27	NOTICE of Entry of Appearance by Preston J. Dugas, III on behalf of HamKim Inc. Attorney Preston J. Dugas, III added to party HamKim Inc.(pty:pla) (Dugas, Preston) (Entered: 01/07/2021)
01/25/2021	28	Joint MOTION to Amend/Correct/Modify 18 Scheduling Order by Defendant AmGUARD Insurance Company. (Attachments: # 1 Proposed Order (PDF Only)) (Hinckley, Robert) (Entered: 01/25/2021)
01/25/2021	29	ORDER REFERRING MOTION: 28 Joint MOTION to Amend/Correct/Modify 18 Scheduling Order filed by AmGUARD Insurance Company. Motion referred to Magistrate Judge Kathleen M. Tafoya by Judge Daniel D. Domenico on 1/25/2021. Text Only Entry (dddlc2,) (Entered: 01/25/2021)
01/26/2021	30	MINUTE ORDER granting 28 Joint Stipulated Motion to Amend Scheduling Order. The deadline to designate affirmative relief experts is extended to February 19, 2021, only with respect to Plaintiff's disclosure of one additional retained expert in a field or expertise not previously addressed in Plaintiff's initial expert disclosures. The deadline to designate defensive experts is extended to March 26, 2021, only with respect to Defendant's disclosure of one additional retained expert in a field of expertise not previously addressed in Defendant's initial expert disclosures. The deadline to designate rebuttal experts is extended to April 16, 2021. Discovery cut-off is extended to June 25, 2021. The dispositive motions deadline is extended to July 16, 2021. By Magistrate Judge Kathleen M. Tafoya on 01/26/21. Text Only Entry(kmtlc2) (Entered: 01/26/2021)
02/19/2021	31	NOTICE of Plaintiff's First Amended Expert Designations by Plaintiff HamKim Inc. (Kim, Michael) (Entered: 02/19/2021)
07/16/2021	32	Partial MOTION for Judgment on the Pleadings by Plaintiff HamKim Inc.. (Attachments: # 1 Proposed Order (PDF Only))(Dugas, Preston) (Entered: 07/16/2021)
08/06/2021	33	BRIEF in Opposition to 32 Partial MOTION for Judgment on the Pleadings filed by Defendant AmGUARD Insurance Company. (Attachments: # 1 Exhibit A - Excerpts of 30b6 Dep of Plf HamKim, # 2 Exhibit 17 - Deposition Exh to Exh A, # 3 Exhibit B - Def's Responses to Plf's 1st Set)(Ellenberger, Laura) (Entered: 08/06/2021)
02/01/2022	34	REASSIGNING MAGISTRATE JUDGE: Due to Magistrate Judge Tafoya's retirement, this case is reassigned to Magistrate Judge N. Reid Neureiter as the referral judge. All future pleadings should reference Magistrate Judge Neureiter at the end of the civil action number (such as 20-cv-01194-DDD-NRN). Unless otherwise ordered, the dates and times for all scheduled matters will be maintained. (Text only entry). (csarr,) (Entered: 02/01/2022)
02/16/2022	35	MOTION to Withdraw as Attorney by Defendant AmGUARD Insurance Company. (Hinckley, Robert) (Entered: 02/16/2022)
03/03/2022	36	NOTICE of Entry of Appearance by Ryan A. Williams on behalf of AmGUARD Insurance Company Attorney Ryan A. Williams added to party AmGUARD Insurance Company(pty:dft) (Williams, Ryan) (Entered: 03/03/2022)
07/07/2022	37	REASSIGNING MAGISTRATE JUDGE. This action is reassigned to Magistrate Judge Maritza Dominguez Braswell, upon her appointment. All future pleadings should reference Magistrate Judge Dominguez Braswell at the end of the civil action number (such as 20-cv-01194-DDD-MDB). Unless otherwise ordered, the dates and times for all previously scheduled matters will be maintained and will now be handled by Magistrate Judge Dominguez Braswell in Suite 100. Her chambers are located at 212 North Wasatch Avenue, Suite 100, Colorado Springs, CO 80903. Her telephone number is 719-575-0328. (Text Only Entry) (cmadr,) (Entered: 07/07/2022)

07/13/2022	38	ORDER GRANTING 35 Motion to Withdraw as Attorney. The Clerk of Court is instructed to terminate attorney Robert B. Hinckley, Jr. as counsel of record, and to remove this name from the electronic certificate of mailing. Defendant AmGUARD Insurance Company will continue to be represented by attorney Laura J. Ellenberger. SO ORDERED by Judge Daniel D. Domenico on 7/13/2022. Text Only Entry(ddd1c2,) (Entered: 07/13/2022)
08/29/2022	39	Joint MOTION for Status Conference by Plaintiff HamKim Inc. (Kim, Michael) Modified to add motion event pursuant MDB on 8/29/2022 (csarr,). Modified on 8/30/2022 to correct event text (athom,). (Entered: 08/29/2022)
09/08/2022	40	ORDER GRANTING IN PART 39 Joint Motion for Status Conference. To facilitate the Court's just, speedy, and inexpensive determination of this action, on or before 9/15/2022 the parties must file a Joint Status Report not to exceed 1,400 words, identifying the following: (1) the nature of the dispute between the parties; (2) the prospects for settlement; (3) three mutually agreeable alternative dates for trial to commence in April, May, or June 2023, and the anticipated length of trial; and (4) any other issues the parties wish to bring to the Court's attention. The Court will set a trial date and associated pretrial deadlines upon receipt of the parties' Joint Status Report. The parties' request for a telephonic scheduling conference is denied. SO ORDERED by Judge Daniel D. Domenico on 09/08/2022. Text Only Entry(ddd1c6,) (Entered: 09/08/2022)
09/08/2022	41	Utility Setting/Resetting Deadlines/Hearings: Joint Status Report due by 9/15/2022 pursuant to 40 Order. Text Only Entry (athom,) (Entered: 09/11/2022)
09/15/2022	42	Joint STATUS REPORT by Plaintiff HamKim Inc.. (Kim, Michael) (Entered: 09/15/2022)
09/16/2022	43	TRIAL PREPARATION ORDER. Final Pretrial Conference set for 4/25/2023 at 01:30 PM in Courtroom A1002 before Judge Daniel D. Domenico. Trial Preparation Conference set for 5/17/2023 at 01:30 PM in Courtroom A1002 before Judge Daniel D. Domenico. Five-day Jury Trial set for 5/22/2023 09:00 AM in Courtroom A1002 before Judge Daniel D. Domenico. By Judge Daniel D. Domenico on 09/16/2022. (athom,) (Entered: 09/16/2022)
10/16/2022	44	Joint STATUS REPORT by Plaintiff HamKim Inc.. (Kim, Michael) (Entered: 10/16/2022)
10/17/2022	45	MINUTE ORDER re: 44 Joint Status Report. The five-day jury trial set for 5/22/2023 is VACATED and RESET for 5/1/2023 at 09:00 AM in Courtroom A1002 before Judge Daniel D. Domenico. Counsel must be present at 08:30 AM on the first day of trial. The Final Pretrial Conference set for 4/25/2023 is VACATED and RESET for 4/11/2023 at 02:30 PM in Courtroom A1002. The Trial Preparation Conference set for 5/17/2023 is VACATED and RESET for 4/25/2023 at 10:30 AM in Courtroom A1002. The pretrial deadlines tied to the date of the Final Pretrial Conference remain as stated in the Trial Preparation Order (Doc. 43) and are now tied to the new Final Pretrial Conference date. SO ORDERED by Judge Daniel D. Domenico on 10/17/2022. Text Only Entry (ddd1c1,) (Entered: 10/17/2022)
10/17/2022	46	MINUTE ORDER re: 45 Minute Order resetting trial date. The previous docket entry contained a typographical error. The Final Pretrial Conference previously set for 4/25/2023 is reset to <u>4/12/2023</u> at 02:30 PM in Courtroom A1002 before Judge Daniel D. Domenico. SO ORDERED by Judge Daniel D. Domenico on 10/17/2022. Text Only Entry (ddd1c1,) (Entered: 10/17/2022)
10/17/2022	47	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES: re: 44 Status Report filed by attorney Michael Young Kim. DO

		NOT REFILE THE DOCUMENT. Action to take - counsel must submit a change of contact request through the Manage my Account tab at the PACER website at https://www.pacer.gov/ , pursuant to D.C.COLO.LAttyR 5(c) and 3.5 of the Electronic Case Filing Procedures (Civil cases). (Text Only Entry) (athom,) (Entered: 10/17/2022)
01/18/2023	48	ORDER Denying Plaintiff's 32 Partial Motion for Judgment on the Pleadings. By Judge Daniel D. Domenico on 01/18/2023. (athom,) (Entered: 01/18/2023)
03/02/2023	49	NOTICE of Entry of Appearance by Jason D. Melichar on behalf of AmGUARD Insurance CompanyAttorney Jason D. Melichar added to party AmGUARD Insurance Company(pty:dft) (Melichar, Jason) (Entered: 03/02/2023)
03/22/2023	50	Proposed Jury Instructions by Defendant AmGUARD Insurance Company. (Ellenberger, Laura) (Entered: 03/22/2023)
03/29/2023	51	MOTION in Limine by Plaintiff HamKim Inc.. (Dugas, Preston) (Entered: 03/29/2023)
03/29/2023	52	OBJECTIONS to <i>Defendant's First Amended Exhibit List</i> by Plaintiff HamKim Inc.. (Dugas, Preston) (Entered: 03/29/2023)
03/29/2023	53	MOTION to Strike <i>Plaintiff's Designation of Non-Retained Experts</i> by Defendant AmGUARD Insurance Company. (Attachments: # 1 Exhibit A - Pltf's Amended Designation of Experts)(Ellenberger, Laura) (Entered: 03/29/2023)
03/29/2023	54	MOTION in Limine by Defendant AmGUARD Insurance Company. (Ellenberger, Laura) (Entered: 03/29/2023)
03/29/2023	55	OBJECTIONS to <i>Plaintiff's Trial Exhibits</i> by Defendant AmGUARD Insurance Company. (Attachments: # 1 Exhibit A - Proposed Trial Exhibits Chart)(Ellenberger, Laura) (Entered: 03/29/2023)
04/05/2023	56	Proposed Voir Dire <i>Questions for the Court</i> by Defendant AmGUARD Insurance Company. (Ellenberger, Laura) (Entered: 04/05/2023)
04/05/2023	57	Witness List by Defendant AmGUARD Insurance Company. (Ellenberger, Laura) (Entered: 04/05/2023)
04/05/2023	58	Witness List by Plaintiff HamKim Inc.. (Dugas, Preston) (Entered: 04/05/2023)
04/05/2023	59	Proposed Voir Dire by Plaintiff HamKim Inc.. (Dugas, Preston) (Entered: 04/05/2023)
04/05/2023	60	Proposed Pretrial Order by Plaintiff HamKim Inc.. (Attachments: # 1 Exhibit A - Parties' Joint Exhibit List)(Dugas, Preston) (Entered: 04/05/2023)
04/05/2023	61	NOTICE of <i>Parties' Proposed Joint Exhibit List</i> by Plaintiff HamKim Inc. (Dugas, Preston) (Entered: 04/05/2023)
04/05/2023	62	RESPONSE to <i>Defendant's Objections to Plaintiff's Exhibits</i> by Plaintiff HamKim Inc.. (Dugas, Preston) (Entered: 04/05/2023)
04/05/2023	63	RESPONSE to 54 MOTION in Limine Attorney Ericha Ramsey Brown added to party HamKim Inc.(pty:pla) filed by Plaintiff HamKim Inc.. (Brown, Ericha) (Entered: 04/05/2023)
04/05/2023	64	RESPONSE to 51 MOTION in Limine filed by Defendant AmGUARD Insurance Company. (Ellenberger, Laura) (Entered: 04/05/2023)
04/05/2023	65	Exhibit List <i>Responses to Plaintiff's Objections</i> by Defendant AmGUARD Insurance Company. (Ellenberger, Laura) (Entered: 04/05/2023)

04/05/2023	66	TRIAL BRIEF by Defendant AmGUARD Insurance Company. (Ellenberger, Laura) (Entered: 04/05/2023)
04/06/2023	67	OBJECTIONS to <i>Defendant's Second Amended Exhibit List</i> by Plaintiff HamKim Inc.. (Attachments: # 1 Exhibit A - Chart of Plaintiff's Unresolved Objections)(Dugas, Preston) (Entered: 04/06/2023)
04/06/2023	68	NOTICE of Plaintiff's Estimated Cross-Examination Time by Plaintiff HamKim Inc. (Dugas, Preston) (Entered: 04/06/2023)
04/07/2023	69	NOTICE of Plaintiff's Second Supplement to its First Amended Initial Disclosures by Plaintiff HamKim Inc. (Dugas, Preston) (Entered: 04/07/2023)
04/07/2023	70	NOTICE Estimated Cross-Examination Time by Defendant AmGUARD Insurance Company (Ellenberger, Laura) (Entered: 04/07/2023)
04/10/2023	71	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES: re: 63 Response to Motion filed by attorney Michael Young Kim. The s/signature did not match the filers name on the account for which the login and password are registered. DO NOT REFILE THE DOCUMENT. Action to take - future documents must be filed pursuant to D.C.COLO.LCivR 5.1(a) and 4.3(c) of the Electronic Case Filing Procedures (Civil cases). Attorney Ericha Ramsey Brown has not made an appearance in this case and must file a Notice of Entry of Appearance before attempting to file any future documents using her log in and password. (Text Only Entry) (athom,) (Entered: 04/10/2023)
04/10/2023	72	RESPONSE to 67 Objections to <i>Defendant's Second Amended Exhibit List Dated April 5, 2023</i> by Defendant AmGUARD Insurance Company. (Ellenberger, Laura) (Entered: 04/10/2023)
04/12/2023	73	MINUTE ENTRY for proceedings held before Judge Daniel D. Domenico: Final Pretrial Conference held on 4/12/2023. Deferring ruling on 51 Motion in Limine. Deferring ruling on 53 Motion to Strike 51 MOTION in Limine , 53 MOTION to Strike <i>Plaintiff's Designation of Non-Retained Experts</i> , 54 MOTION in Limine . Deferring ruling on 54 Motion in Limine. Court Reporter: Terri Lindblom. (rkeec) (Entered: 04/13/2023)
04/17/2023	74	NOTICE Intent to Offer Evidence Pursuant to Federal Rule of Evidence 902 by Plaintiff HamKim Inc. (Attachments: # 1 Exhibit A - Certificate of Authenticity)(Dugas, Preston) (Entered: 04/17/2023)
04/19/2023	75	TRIAL BRIEF <i>re Crosier</i> by Plaintiff HamKim Inc.. (Kim, Michael) (Entered: 04/19/2023)
04/19/2023	76	TRIAL BRIEF <i>re Expectation Damages</i> by Plaintiff HamKim Inc.. (Kim, Michael) (Entered: 04/19/2023)
04/19/2023	77	TRIAL BRIEF <i>re Sitzmann</i> by Plaintiff HamKim Inc.. (Kim, Michael) (Entered: 04/19/2023)
04/19/2023	78	TRIAL BRIEF <i>re Defendant's Motion to Strike Non-Retained Experts</i> by Plaintiff HamKim Inc.. (Attachments: # 1 Exhibit 1)(Kim, Michael) (Entered: 04/19/2023)
04/19/2023	79	TRIAL BRIEF <i>re Irmiter</i> by Plaintiff HamKim Inc.. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2)(Kim, Michael) (Entered: 04/19/2023)
04/19/2023	80	TRIAL BRIEF <i>Supplemental</i> by Defendant AmGUARD Insurance Company. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E) (Ellenberger, Laura) (Entered: 04/19/2023)

04/24/2023	81	RESPONSE to 76 Trial Brief <i>Regarding Expectation Damages</i> by Defendant AmGUARD Insurance Company. (Attachments: # 1 Exhibit A to Defendant's Respons) (Ellenberger, Laura) (Entered: 04/24/2023)
04/24/2023	82	RESPONSE to 79 Trial Brief <i>Regarding Plaintiff's Expert Thomas Irmiter</i> by Defendant AmGUARD Insurance Company. (Attachments: # 1 Exhibit A)(Ellenberger, Laura) (Entered: 04/24/2023)
04/24/2023	83	RESPONSE to 78 Trial Brief <i>Regarding AmGuard's Motion to Strike Non-Retained Experts</i> by Defendant AmGUARD Insurance Company. (Attachments: # 1 Exhibit A) (Ellenberger, Laura) (Entered: 04/24/2023)
04/24/2023	84	RESPONSE to 77 Trial Brief <i>Regarding Opinions of Matthew J. Sitzmann</i> by Defendant AmGUARD Insurance Company. (Attachments: # 1 Exhibit A, # 2 Exhibit B (1 of 2), # 3 Exhibit B (2 of 2), # 4 Exhibit C)(Ellenberger, Laura) (Entered: 04/24/2023)
04/24/2023	85	MOTION to Quash <i>Plaintiff's Trial Subpoena for the Corporate Representative of AmGuard Insurance Company</i> by Defendant AmGUARD Insurance Company. (Attachments: # 1 Exhibit A)(Ellenberger, Laura) (Entered: 04/24/2023)
04/24/2023	86	TRIAL BRIEF <i>Response to Defendant's Tom Irmiter Briefing</i> by Plaintiff HamKim Inc.. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C)(Kim, Michael) (Entered: 04/24/2023)
04/24/2023	87	TRIAL BRIEF <i>Response to Defendant's Supplemental Pre-Trial Briefing</i> by Plaintiff HamKim Inc.. (Kim, Michael) (Entered: 04/24/2023)
04/24/2023	88	RESPONSE to 75 Trial Brief <i>Regarding Christopher Crosier</i> by Defendant AmGUARD Insurance Company. (Attachments: # 1 Exhibit A, # 2 Exhibit B)(Ellenberger, Laura) (Entered: 04/24/2023)
04/25/2023	89	Witness List <i>First Amended</i> by Defendant AmGUARD Insurance Company. (Ellenberger, Laura) (Entered: 04/25/2023)
04/25/2023	90	Exhibit List <i>Fourth Amended</i> by Defendant AmGUARD Insurance Company. (Ellenberger, Laura) Modified on 4/25/2023 to note that this document has been re-filed as doc 91 (athom,). (Entered: 04/25/2023)
04/25/2023	91	Exhibit List <i>Fourth Amended (Corrected from Doc 90)</i> by Defendant AmGUARD Insurance Company. (Ellenberger, Laura) (Entered: 04/25/2023)
04/25/2023	92	Witness List <i>First Amended</i> by Plaintiff HamKim Inc.. (Dugas, Preston) (Entered: 04/25/2023)
04/25/2023	93	TRANSCRIPT of Final Pretrial Conference held on 4/12/2023 before Judge Domenico. Pages: 1-43. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (tlind,) (Entered: 04/25/2023)

04/25/2023	94	MINUTE ENTRY for proceedings held before Judge Daniel D. Domenico: Trial Preparation Conference held on 4/25/2023. Court Reporter: Julie Thomas. (rkeec) (Entered: 04/25/2023)
04/26/2023	95	RESTRICTED DOCUMENT - Level 1: Exhibit F by Defendant AmGUARD Insurance Company. (Ellenberger, Laura) Modified on 4/27/2023 to add title of document (athom,). Modified to remove restriction pursuant Local Rule 7.2(e) on 5/11/2023 (csarr,). (Entered: 04/26/2023)
04/26/2023	96	STIPULATION re 94 Trial Preparation Conference <i>Plaintiff and Defendant Facts for Trial</i> by Defendant AmGUARD Insurance Company. (Ellenberger, Laura) (Entered: 04/26/2023)
04/26/2023	97	BRIEF re 94 Trial Preparation Conference <i>Case Law Regarding Applicability of the Prevention Doctrine to Plaintiff's Claims</i> by Defendant AmGUARD Insurance Company. (Ellenberger, Laura) (Entered: 04/26/2023)
04/26/2023	98	Emergency MOTION to Continue by Plaintiff HamKim Inc.. (Attachments: # 1 Exhibit A, # 2 Proposed Order (PDF Only))(Dugas, Preston) (Entered: 04/26/2023)
04/26/2023	99	NOTICE of Legal Authority by Plaintiff HamKim Inc. (Attachments: # 1 Exhibit Exhibit 1, # 2 Exhibit Exhibit 2, # 3 Exhibit Exhibit 3, # 4 Exhibit Exhibit 4)(Kim, Michael) (Entered: 04/26/2023)
04/26/2023	100	ORDER re 98 Motion to Continue. The Defendant is directed to file a response no later than 10:00 a.m. on 4/27/2023. The response should document the measures that the Defendant has undertaken to help serve Mr. Taylor pursuant to my 4/25/2023 order. SO ORDERED by Judge Daniel D. Domenico on 4/26/2023. Text Only Entry (dddlc6,) (Entered: 04/26/2023)
04/26/2023	101	AFFIDAVIT/RETURN of Service on <i>Christopher Lee Crosier</i> of Trial Subpoena for May 3-5, 2023 and Witness Fee Check upon Michael Kim on April 25, 2023, filed by Defendant AmGUARD Insurance Company (Ellenberger, Laura) (Entered: 04/26/2023)
04/27/2023	102	RESPONSE to 98 Emergency MOTION to Continue filed by Defendant AmGUARD Insurance Company. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E)(Ellenberger, Laura) (Entered: 04/27/2023)
04/27/2023	103	SUPPLEMENT/AMENDMENT to 102 Response to Motion for a Trial Continuance [ECF No. 98] by Defendant AmGUARD Insurance Company. (Attachments: # 1 Exhibit F)(Ellenberger, Laura) (Entered: 04/27/2023)
04/27/2023	104	ORDER DENYING 98 Emergency Motion to Continue. By Judge Daniel D. Domenico on 4/27/2023. (dddlc1,) (Entered: 04/27/2023)
04/28/2023	105	ORDER ON PRETRIAL DISPUTES. Plaintiff's Motion In Limine, Doc. 51 , is GRANTED IN PART and DENIED IN PART. Defendant's Motion to Strike Non-Retained Experts, Doc. 53, is DENIED. Defendant's Motion In Limine, Doc. 54 , is GRANTED IN PART and DENIED IN PART. Defendant's Motion to Quash Plaintiff's Trial Subpoena for the Corporate Representative of AmGUARD, Doc. 85 , is GRANTED. By Judge Daniel D. Domenico on 04/28/2023. (athom,) (Entered: 04/28/2023)
04/28/2023	106	AFFIDAVIT/RETURN of Service of Subpoenas to Appear at Trial upon Matthew Sitzmann on April 28, 2023, filed by Defendant AmGUARD Insurance Company (Ellenberger, Laura) (Entered: 04/28/2023)
04/28/2023	107	AFFIDAVIT/RETURN of Service of Subpoenas to Appear at Trial upon William Badini on April 28, 2023, filed by Defendant AmGUARD Insurance Company (Ellenberger,

		Laura) (Entered: 04/28/2023)
04/28/2023	108	AFFIDAVIT/RETURN of Service of Subpoenas to Appear at Trial upon David Werber on April 28, 2023, filed by Defendant AmGUARD Insurance Company (Ellenberger, Laura) (Entered: 04/28/2023)
04/28/2023	109	STATEMENT <i>Glossary of Technical Terms or Abbreviations</i> by Defendant AmGUARD Insurance Company. (Ellenberger, Laura) (Entered: 04/28/2023)
04/30/2023	110	FINAL PRETRIAL ORDER by Judge Daniel D. Domenico on 4/30/2023. (dddlc1,) (Entered: 04/30/2023)
05/01/2023	111	Exhibit List <i>Final Joint Trial Exhibit List</i> by Plaintiff HamKim Inc.. (Kim, Michael) (Entered: 05/01/2023)
05/01/2023	112	Exhibit List <i>Parties' Final Amended Exhibit List</i> by Plaintiff HamKim Inc.. (Dugas, Preston) (Entered: 05/01/2023)
05/01/2023	113	MINUTE ENTRY for proceedings held before Judge Daniel D. Domenico: Jury Trial (Day 1) held on 5/1/2023. Court Reporter: Julie Thomas. (rkeec) (Entered: 05/02/2023)
05/01/2023	114	Jury Strike Sheet with juror names - Unredacted - Level 3 - Viewable by Court Only. (rkeec) (Entered: 05/02/2023)
05/01/2023	115	Jury Strike Sheet with juror names readacted. (rkeec) (Entered: 05/02/2023)
05/01/2023	116	Jury Random List - Unredacted - Level 3 - Viewable by Court Only. (rkeec) (Entered: 05/02/2023)
05/02/2023	117	MINUTE ENTRY for proceedings held before Judge Daniel D. Domenico: Jury Trial (Day 2) held on 5/2/2023. Court Reporter: Julie Thomas. (rkeec) (Entered: 05/02/2023)
05/03/2023	118	MINUTE ENTRY for proceedings held before Judge Daniel D. Domenico: Jury Trial (Day 3) held on 5/3/2023. Defendants oral motion for judgment as a matter of law is TAKEN UNDER ADVISEMENT. Court Reporter: Julie Thomas. (rkeec) (Main Document 118 replaced on 5/4/2023) (rkeec,). Modified on 5/4/2023 (rkeec). (Entered: 05/04/2023)
05/04/2023	120	MINUTE ENTRY for proceedings held before Judge Daniel D. Domenico: Jury Trial (Day 4) held on 5/4/2023. Court Reporter: Julie Thomas. (rkeec) Modified on 5/5/2023 to reflect Jury Trial instead of Bench Trial (rkeec). (Entered: 05/05/2023)
05/05/2023	119	ORDER: Clerk's office shall provide jury with lunch for the duration of their deliberations commencing on Friday, May 5, 2023. SO ORDERED by Judge Daniel D. Domenico on 5/5/2023. Text Only Entry. (rkeec) Modified on 5/5/2023 to add punctuation (rkeec). (Entered: 05/05/2023)
05/05/2023	121	MINUTE ENTRY for proceedings held before Judge Daniel D. Domenico: Jury Trial (Day 5) completed on 5/5/2023. JURY VERDICT. Plaintiffs oral motion for directed verdict is TAKEN UNDER ADVISEMENT. Defendants renewed oral motion for judgment as a matter of law is TAKEN UNDER ADVISEMENT. Court Reporter: Julie Thomas. (Attachments: # 1 Plaintiff's final witness list, # 2 Defendant's final witness list, # 3 Final joint exhibit list) (rkeec) (Entered: 05/08/2023)
05/05/2023	122	Final Jury Instructions as read by the Court on 5/5/2023. (rkeec) (Entered: 05/08/2023)
05/05/2023	123	STIPULATION AND ORDER REGARDING CUSTODY OF EXHIBITS AND DEPOSITIONS. SO ORDERED by Judge Daniel D. Domenico on 5/5/2023. (rkeec) (Entered: 05/08/2023)

05/05/2023	124	Jury Note (question) - Unredacted - Level 3 - Viewable by Court Only. (Attachments: # 1 Court response to jury question)(rkeec) (Entered: 05/08/2023)
05/05/2023	125	Jury Note with juror name redacted. (Attachments: # 1 Court response to jury question) (rkeec) (Entered: 05/08/2023)
05/05/2023	126	Jury Note (verdict) - Unredacted - Level 3 - Viewable by Court Only. (rkeec) (Entered: 05/08/2023)
05/05/2023	127	Jury Note (verdict) with juror name redacted. (rkeec) (Entered: 05/08/2023)
05/05/2023	128	Jury Verdict - Unredacted - Level 3 - Viewable by Court Only. (rkeec) (Entered: 05/08/2023)
05/05/2023	129	JURY VERDICT with juror name redacted. (rkeec) (Entered: 05/08/2023)
05/08/2023	130	ORDER re: 129 Jury Verdict. The plaintiff must draft a proposed final judgment and submit it to the defendant for review on or before 5/9/2023. If agreed, the plaintiff must file the agreed judgment on or before 5/10/2023; if not agreed, each side must file its proposed final judgment on or before 5/10/2023. The defendant's agreement or proposal as to the form of the proposed judgment will not be deemed a waiver of any issues it intends to raise pursuant to Federal Rules of Civil Procedure 50, 59, and/or 60 after judgment is entered. SO ORDERED by Judge Daniel D. Domenico on 5/8/2023. Text Only Entry (dddlc1,) (Entered: 05/08/2023)
05/10/2023	131	RESPONSE to 130 Order,, <i>Proposed Final Judgment Form</i> by Defendant AmGUARD Insurance Company. (Ellenberger, Laura) (Entered: 05/10/2023)
05/10/2023	132	NOTICE of Plaintiff's Proposed Final Judgment by Plaintiff HamKim Inc. (Kim, Michael) (Entered: 05/10/2023)
05/18/2023	133	FINAL JUDGMENT by Clerk in favor of HamKim Inc. against AmGUARD Insurance Company. Approved as to form by Judge Daniel D. Domenico on 5/18/2023. (rkeec) (Entered: 05/18/2023)
06/01/2023	134	MOTION for Attorney Fees <i>and Costs</i> by Plaintiff HamKim Inc.. (Attachments: # 1 Exhibit Exhibit A, # 2 Exhibit Exhibit B, # 3 Affidavit Exhibit C-Affidavit of Michael Kim, # 4 Exhibit Exhibit C-1, # 5 Exhibit Exhibit C-2, # 6 Exhibit Exhibit C-3, # 7 Affidavit Exhibit D-Affidavit of Preston Dugas, # 8 Exhibit Exhibit D-1, # 9 Exhibit Exhibit D-2, # 10 Exhibit Exhibit D-3)(Kim, Michael) (Entered: 06/01/2023)
06/01/2023	135	Proposed Bill of Costs by Plaintiff HamKim Inc.. (Kim, Michael) (Entered: 06/01/2023)
06/02/2023	136	NOTICE by Clerk re 135 Proposed Bill of Costs. As set in the Proposed Bill, the hearing for this matter will be held on June 29, 2023 at 9:30 a.m. MST. The hearing will be held IN PERSON - the parties are directed to have counsel asserting the Proposed Bill of Costs and opposing counsel presenting objections be physically present for the hearing. The hearing will be held in Courtroom C401 (4th floor) of the Byron Rogers U.S. Courthouse, 1929 Stout Street, Denver [NOT the Arraj Courthouse]. PLAINTIFF IS ALSO DIRECTED TO FILE AN AMENDED PROPOSED BILL OF COSTS - Specifically, please give the exact reason as to why the cost should be awarded in each line item of the Itemization chart. See p. 17 of the attached Guide for an example of what the Clerk requires. Also, please note that while applicable caselaw is helpful, the Clerk (and opposing counsel, and the Court) will specifically need to know WHY an incurred cost was necessary - and not just used for the convenience of counsel - and HOW that cost contributed to Plaintiff becoming the prevailing party. The Clerk reminds the parties that a Statement of Conferral must be filed no later than the close of business of the clerk's office at 5:00 p.m. (Mountain Time) the day before the hearing in order to confirm the

		attempts to reach a settlement on either some or all of the requested costs, per local rules LCivR 54.1 and 77.1, and to confirm the parties have utilized the Clerk's Guide to Bills of Cost Hearings (see attached) in their discussions. Failure to file a Statement of Conferral by the close of business the day before the hearing will result in the Bill of Costs being summarily denied and the hearing will be vacated. Finally, the Clerk strongly encourages the parties to reach an agreement as to individual costs items - or preferably - a global settlement, in light of the Rule One directive that the court and PARTIES work to secure the just, speedy, and inexpensive determination of every action and proceeding. (ashee) (Entered: 06/02/2023)
06/06/2023	137	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES: re: 134 MOTION for Attorney Fees <i>and Costs</i> filed by attorney Michael Young Kim. <u>DO NOT REFILE THE DOCUMENT.</u> Action to take - counsel must submit a change of contact request through the Manage my Account tab at the PACER website at https://www.pacer.gov/ , pursuant to D.C.COLO.LAttyR 5(c) and 3.5 of the Electronic Case Filing Procedures (Civil cases). (Text Only Entry) (athom,) (Entered: 06/06/2023)
06/12/2023	138	ORDER REFERRING MOTION(S): 134 MOTION for Attorney Fees <i>and Costs</i> filed by HamKim Inc.. Motions referred to Magistrate Judge Maritza Dominguez Braswell by Judge Daniel D. Domenico on 6/12/2023. Text Only Entry (dddlc6,) (Entered: 06/12/2023)
06/15/2023	139	Renewed MOTION for Judgment as a Matter of Law , <i>Motion for New Trial, and Motion to Alter or Amend Judgment</i> by Defendant AmGUARD Insurance Company. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C)(Ellenberger, Laura) (Entered: 06/15/2023)
06/22/2023	140	RESPONSE to 134 MOTION for Attorney Fees <i>and Costs and Request for Hearing</i> filed by Defendant AmGUARD Insurance Company. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C)(Ellenberger, Laura) (Entered: 06/22/2023)
06/27/2023	141	STIPULATION re 135 Proposed Bill of Costs by Plaintiff HamKim Inc.. (Attachments: # 1 Exhibit Amended Bill of Costs)(Kim, Michael) (Entered: 06/27/2023)
06/28/2023	142	Costs Taxed by Clerk in the amount of \$6,131.34 against Defendant AmGuard Insurance Company and in favor of HamKim, Inc. Costs awarded pursuant to the parties' Stipulation, Docket no. 141. Accordingly, the hearing set for June 29, 2023 is VACATED. (ashee) (Entered: 06/28/2023)
06/29/2023	143	Unopposed MOTION for Extension of Time to File Response/Reply as to 139 Renewed MOTION for Judgment as a Matter of Law , <i>Motion for New Trial, and Motion to Alter or Amend Judgment</i> by Plaintiff HamKim Inc.. (Attachments: # 1 Exhibit 1, # 2 Proposed Order (PDF Only))(Dugas, Preston) (Entered: 06/29/2023)
06/30/2023	144	ORDER GRANTING 143 Plaintiff's Unopposed Motion for Extension of Time to File Response. Plaintiff's response to 139 Defendant's Motion for Judgment as a Matter of Law, New Trial, and to Alter or Amend Judgment due on or before 7/27/2023. This Court is considering certifying to the Colorado Supreme Court the questions of: (1) whether Colorado law permits an insured to recover both (a) statutory damages of "reasonable attorney fees and court costs and two times the covered benefit" for unreasonable delay or denial of insurance benefits pursuant to Colo. Rev. Stat. §§ 10-3-1115 and 1116, and (b) actual damages for an insurer's breach of the common-law duty of

		bad faith and fair dealing; and (2) whether Colorado law permits an insured to recover both (a) statutory damages of "reasonable attorney fees and court costs and two times the covered benefit" for unreasonable delay or denial of insurance benefits pursuant to Colo. Rev. Stat. §§ 10-3-1115 and 1116, and (b) exemplary damages for an insurer's fraudulent, malicious, or willful and wanton breach of the common-law duty of bad faith and fair dealing pursuant to Colo. Rev. Stat. § 13-21-102. <i>See</i> Colo. App. R. 21.1; <i>Hernandez v. Ray Domenico Farms, Inc.</i>, 414 P.3d 700 (Colo. 2018). On or before 7/27/23, each side must file a brief stating its position on whether these, or similar, questions should be certified and its proposal for how to phrase the certified questions. SO ORDERED by Judge Daniel D. Domenico on 6/30/2023. Text Only Entry (dddlc1,) (Entered: 06/30/2023)
07/06/2023	145	REPLY to Response to 134 MOTION for Attorney Fees <i>and Costs</i> filed by Plaintiff HamKim Inc.. (Attachments: # 1 Exhibit Exhibit A)(Kim, Michael) (Entered: 07/06/2023)
07/12/2023	146	NOTICE of Entry of Appearance by Jennifer Gossom Martin on behalf of AmGUARD Insurance CompanyAttorney Jennifer Gossom Martin added to party AmGUARD Insurance Company(pty:dft) (Martin, Jennifer) (Entered: 07/12/2023)
07/14/2023	147	TRANSCRIPT of Trial Preparation Conference held on April 25, 2023 before Judge Domenico. Pages: 1-48. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court's public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (nrich) (Entered: 07/14/2023)
07/14/2023	148	TRANSCRIPT of Jury Trial, Day 1 held on May 1, 2023 before Judge Domenico. Pages: 1-177. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court's public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (nrich) (Entered: 07/14/2023)
07/14/2023	149	TRANSCRIPT of Jury Trial, Day 2 held on May 2, 2023 before Judge Domenico. Pages: 178-355. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov.

		Transcript may only be viewed at the court's public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (nrich) (Entered: 07/14/2023)
07/14/2023	150	TRANSCRIPT of Jury Trial, Day 3 held on May 3, 2023 before Judge Domenico. Pages: 356-561. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court's public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (nrich) (Entered: 07/14/2023)
07/14/2023	151	TRANSCRIPT of Jury Trial, Day 4 held on May 4, 2023 before Judge Domenico. Pages: 562-815. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court's public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (nrich) (Entered: 07/14/2023)
07/14/2023	152	TRANSCRIPT of Jury Trial, Day 5 held on May 5, 2023 before Judge Domenico. Pages: 816-993. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court's public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (nrich) (Entered: 07/14/2023)
07/24/2023	153	Joint MOTION for Extension of Time to <i>File Post-Trial Briefings</i> by Defendant AmGUARD Insurance Company. (Ellenberger, Laura) (Entered: 07/24/2023)
07/25/2023	154	ORDER granting 153 Joint MOTION for Extension of Time to <i>File Post-Trial Briefings</i> . The parties shall file their post-trial briefing no later than 10/25/2023. SO ORDERED by Judge Daniel D. Domenico on 7/25/2023. Text Only Entry (ddd1c6,) (Entered: 07/25/2023)
08/31/2023	155	MINUTE ORDER. The parties have informed the Court that they have reached a settlement agreement. 139 Defendant's Renewed Motion for Judgment as a Matter of Law, New Trial, and to Alter or Amend Judgment is therefore DENIED AS MOOT. The parties must file appropriate dismissal papers or a joint report regarding the status of settlement on or before 10/2/2023. SO ORDERED by Judge Daniel D. Domenico on 8/31/2023. Text Only Entry (ddd1c1,) (Entered: 08/31/2023)
08/31/2023	156	MINUTE ORDER. 134 Plaintiff's Motion for Attorney Fees and Costs is NO LONGER REFERRED to Magistrate Judge Maritza Dominguez Braswell and is DENIED AS

		MOOT in light of the parties' settlement. SO ORDERED by Judge Daniel D. Domenico on 8/31/2023. Text Only Entry (dddlc1,) (Entered: 08/31/2023)
10/02/2023	157	Joint STATUS REPORT by Defendant AmGUARD Insurance Company. (Ellenberger, Laura) (Entered: 10/02/2023)
10/18/2023	158	STIPULATION of Dismissal of Case by Plaintiff HamKim Inc.. (Kim, Michael) (Entered: 10/18/2023)
10/23/2023	159	ORDER DISMISSING CASE pursuant to 158 Stipulation of Dismissal. All claims asserted in this action are DISMISSED WITH PREJUDICE, with each party to bear its own fees and costs. SO ORDERED by Judge Daniel D. Domenico on 10/23/2023. Text Only Entry (dddlc8,) (Entered: 10/23/2023)

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